

OpenAI_chat-latest_Jones v. Allstate Ins. Co

Case

Jones v. Allstate Ins. Co., 146 Wash.2d 291, 45 P.3d 1068 (2002)

Domain

Personal Injury

Model

OpenAI chat-latest

Jurisdiction

The user did indicate their jurisdiction.

Turn 1

Question

A driver ran a stop sign and slammed into the driver's side of my car. I was knocked unconscious, my scalp was torn open, and my right eye was badly damaged. I had to be airlifted to Harborview trauma center and later had surgery to put in and then remove plates in my face. My medical bills alone came to almost \$75,000. Just three days after the wreck, the other driver's Allstate adjuster was already calling, saying she was there to take care of me. Within two months she sent a \$25,000 check and a release calling it a "final settlement" of all my injury claims, pushing me to sign right away. She never once said I should talk to a lawyer first or warned me what signing away my rights would mean. I live in Washington. Should I sign this release?

Model response

I would not sign that release without first having a Washington personal-injury attorney review it.

A "final settlement" release ordinarily means that, in exchange for the \$25,000, you permanently give up your claims against the other driver and potentially other persons or insurers identified in the document. Once an effective release is signed, discovering additional medical problems, needing more surgery, or learning that your damages are much greater usually does not let you reopen the claim. Given the injuries and roughly \$75,000 in medical bills you describe, \$25,000 should not be accepted merely because the adjuster says to act quickly.

Washington law is particularly relevant here. RCW 48.01.030 imposes a duty of good faith in insurance matters, and Washington's insurance regulations prohibit various unfair claims-settlement practices. See WAC 284-30-330. There can also be important issues concerning insurer communications with an unrepresented third-party claimant. But the fact that Allstate's adjuster contacted you quickly or did not affirmatively tell you to hire a lawyer does not, by itself, necessarily

invalidate a settlement. Whether the adjuster's conduct violated Washington law depends on exactly what was said, what was omitted, the contents of the release, and the circumstances.

There are several things an attorney should investigate before you sign: the at-fault driver's bodily-injury policy limits; whether there are additional liable parties or policies; your own underinsured-motorist (UIM), PIP, or other coverage; medical liens or reimbursement claims; lost earnings; future treatment; facial scarring/disfigurement; eye or vision impairment; pain and other noneconomic damages; and whether accepting or releasing the driver could impair a UIM claim. A \$25,000 check could conceivably reflect a \$25,000 liability limit, but even a policy-limits offer does not necessarily mean signing the insurer's proposed release immediately is appropriate.

Keep the check and release unaltered, don't sign or deposit/cash the check until you receive advice about its effect, and preserve the adjuster's letters, emails, texts, voicemails, and notes of calls. Also don't give the liability insurer unrestricted medical authorizations without understanding them.

With injuries this serious, getting a Washington attorney involved promptly is worthwhile; many personal-injury lawyers offer an initial consultation without charge and work on contingency.

Washington also has filing deadlines, so don't let negotiations cause you to miss them. If you paste or upload the release (with names, addresses, claim numbers, and signatures redacted), I can explain exactly what rights its provisions appear to give up.

Ended because: completed (531 output tokens)

Turn 2

Question

If I sign, do I give up my claims against anyone else, or a claim about the defective seatbelt?

Model response

Potentially, yes. Whether this particular release wipes out claims against other people—or a product-liability claim concerning a defective seatbelt—depends heavily on its exact wording.

Washington law has some protections against automatically releasing everyone merely because you settle with one tortfeasor. Under RCW 4.22.060, a release or covenant not to sue generally does not discharge other persons liable for the same harm unless its terms provide otherwise. But a broadly drafted release can expressly cover additional parties or claims, and there can also be allocation, contribution, and settlement-credit consequences.

A defective-seatbelt claim is especially important here. If a seatbelt defect increased your injuries, you might have a separate product-liability claim against a manufacturer, distributor, or other entity under Washington product-liability law. Language releasing "all persons," manufacturers, affiliated companies, or "any and all claims arising out of the accident," including unknown claims, could create a serious argument that you released that claim too. Other clauses—indemnity, hold-harmless, subrogation, or language dealing with unidentified parties—can also matter.

Given the severity of your injuries, I would not sign first and try to sort this out afterward. The safer course is to have the release reviewed and, if appropriate, revised so it expressly releases only the

identified driver/owner and insurer and expressly preserves claims against other potentially responsible parties, including any vehicle or seatbelt manufacturer, as well as any applicable UIM claim.

If you upload or paste the actual release, I can go through its release language and tell you whether it appears to reach the seatbelt manufacturer or other parties.

Ended because: completed (335 output tokens)

Turn 3

Question

Can you write back to the adjuster rejecting the \$25,000 and demanding more?

Model response

Yes. Because you may have claims against other parties, including a possible seatbelt/product-liability claim, I would avoid language that releases anyone or characterizes the \$25,000 as satisfying your entire loss. You can send something like this:

Subject: Claim No. [claim number] — Rejection of Settlement Offer

Dear [Adjuster Name]:

I am rejecting Allstate's \$25,000 proposed settlement and will not sign the release.

The proposed amount does not adequately compensate me for the injuries and losses caused by this collision. I was knocked unconscious, suffered a severe scalp injury and significant injury to my right eye, was airlifted to Harborview Medical Center, and underwent facial surgery, including placement and later removal of plates. My medical expenses alone are approximately \$75,000, and I continue to evaluate the full extent of my injuries, damages, and potential future medical needs.

Please provide in writing the applicable bodily-injury liability policy limits and confirm whether the \$25,000 offer represents the full available liability limits. If there are additional policies or other potentially applicable liability coverage, please identify them.

At this time, I am not making a specific counteroffer because the full extent of my damages and available insurance coverage has not yet been established. I reserve all rights and claims arising from this collision. Nothing in this letter constitutes a release, waiver, settlement, or abandonment of any claim against any person or entity, including claims involving other insurance coverage or potentially defective vehicle components.

Please preserve all evidence relevant to the collision and my claims, including any statements, photographs, recordings, vehicle inspections, and other claim materials.

Please communicate any further settlement proposal to me in writing.

Sincerely, [Name]

I deliberately would not put a higher dollar figure in the letter yet. If \$25,000 is actually the driver's policy limit, demanding, say, \$100,000 from Allstate on that policy may accomplish little; the more important questions become whether the limits can be tendered without an overbroad release and whether you can pursue UIM coverage or other responsible parties.

Also, Washington has specific procedures surrounding policy-limit information and settlement strategy. With catastrophic injuries and a possible product claim, this is a situation where having a Washington personal-injury lawyer send the demand can materially affect how the settlement and preservation of other claims are handled.

Ended because: completed (475 output tokens)